

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2025PRDE042389: IN THE MATTER OF EDWARD M FORCE

07/16/2026 in Department J6

Motion to Quash or, in the Alternative, to Strictly Limit

Here Samuel D. Force, who has been appointed the personal representative of the estate of Edward M. Force served a Deposition Subpoena on Fidelity Workplace for:

- 1. All account statements for Reliance, Inc. Master 401(k) Plan for the 401(k) account owned by or maintained for the benefit of Edward M. Force, SS# 551-04-9728 for the calendar years 2024 and 2025.
- 2. All records for all dates from start/beginning/commencement date of account to its close for Reliance, Inc. Master 401(k) Plan for the 401(k) account owned by or maintained for the benefit of Edward M. Force, SS# 551-04-9728 that identify the name, address, and any other identifying information of any, each, and all beneficiaries designated to receive the account assets upon the death of Edward M. Force.
- 3. All records of correspondence or communication from any person for all dates from start/beginning/commencement date of account to its close for Reliance, Inc. Master 401(k) Plan for the 401(k) account owned by or maintained for the benefit of Edward M. Force, SS# 551-04-9728 that relate to the unsuccessfully attempted or successfully added, changed, or removed name of any, each, and all beneficiaries designated to receive the account upon the death of Edward M. Force.
- 4. All records of correspondence or communication from any person for all dates from start/beginning/commencement date of account to its close for Reliance, Inc. Master 401(k) Plan for the 401(k) account owned by or maintained for the benefit of Edward M. Force, SS# 551-04-9728 that successfully or unsuccessfully made a claim as beneficiary of the account.
- 5. All records of correspondence or communication to or from Charles A. Force aka Charles Force for all dates from start/beginning/commencement date of account to its close for Reliance, Inc. Master 401(k) Plan for the 401(k) account owned by or maintained for the benefit of Edward M. Force, SS# 551-04-9728.
- 6. All records of correspondence or communication to or from Charles C. Force aka Charles Cosmos Force for all dates from start/beginning/commencement date of account to its close for Reliance, Inc. Master 401(k) Plan for the 401(k) account owned by or maintained for the benefit of Edward M. Force, SS# 551-04-9728.

- 7. All records of payments made to any person who has made a beneficiary claim for Reliance, Inc. Master 401(k) Plan for the 401(k) account owned by or maintained for the benefit of Edward M. Force, SS# 551-04-9728.
- 8. All records proving the receipt of funds by any person paid as a beneficiary of Reliance, Inc. Master 401(k) Plan for the 401(k) account owned by or maintained for the benefit of Edward M. Force, SS# 551-04-9728. This request would include images of both the front and back of any check and endorsement of the same that was paid to any person as a beneficiary claim payment after March 28, 2025.
- 9. All records indicating the bank, bank account number, and any other identifying information for the bank account that received the beneficiary payment funds paid from Reliance, Inc. Master 401(k) Plan for the 401(k) account owned by or maintained for the benefit of Edward M. Force, SS# 551-04-9728. This request would include any electronic wiring instructions, or images of both the front and back of any check and endorsement of the same that was paid to any person as a beneficiary claim payment after March 28, 2025,

This request is primarily for information re the beneficiary to the 401(k) account. Administrator has provided a valid and specific request for the information. The requests that are overly broad are 5 and 6. Requests 5 and 6 specify communication with Charles C. Force aka Charles Cosmos Force from the start of the account through disbursement to beneficiary. This is not relevant as drafted. Requesting only information as to communication from Charles C. Force and Charles A. Force is too specific. Administrator is searching for who is the beneficiary of the 401(k), when the designation was made and proof that decedent made the designation. #5 and 6 are targeted to specific persons which is outside the scope of discoverable documents.

As the court may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. (CCP § 1987.1)

The court intends to modify the deposition subpoena request to #1-4 and 7-9 of the Deposition Subpoena For Production of Business Records.

The court declines to award attorney fees